

25STCV20281 25STCV20281

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV20281 Hearing Date: July 13, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KHACHIK

SHAGINIAN

Plaintiff,

vs.

VOLKSWAGEN

GROUP OF AMERICA, INC., et al.,

Defendants.

Case No.:

25STCV20281

Hearing

Date:

July 13,

ORDER
DEEMING MOTION TO ENFORCE COMPLIANCE
WITH COURT ORDER MOOT

I. BACKGROUND

Plaintiff Khachik Shaginian ("Shaginian") entered into a warranty contract with Defendant Volkswagen Group of America, Inc. ("Volkswagen") regarding a 2021 Audi S6 ("subject vehicle"). The subject vehicle allegedly has defects and nonconformities. Volkswagen allegedly failed to reasonably repair or reimburse Shaginian for the vehicle. Shaginian sues Defendants for four causes of action, including breach of the implied warranty and negligent repair.

On May 26, 2026, Shaginian filed the instant motion to enforce compliance with the April 20, 2026 Court order. Shaginian also requests the Court impose terminating sanctions against Volkswagen, and \$500.00 in sanctions per day Volkswagen fails to comply with any new Court order. Volkswagen opposes.

II. LEGAL STANDARD

Code of Civil Procedure
section 2023.030[1]
gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (§ 2023.030, subd. (d).)

A violation of a discovery
order is sufficient basis for the imposition of terminating sanctions. (Collison & Kaplan v. Hartunian (1994) 21 Cal.App.4th 1611, 1620.) Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 795-796.)

A terminating sanction is a
"drastic measure which should be employed with caution." (Deyo, 84 Cal.App.3d at 793.) "A decision to order terminating sanctions should not be made lightly. But where a

violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, 84 Cal.App.3d at 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.) Sanctions are not to be imposed for punishment purposes but instead are used to encourage fair disclosure of discovery to prevent unfairness resulting from the lack of information. (See Midwife v. Bernal (1988) 203 Cal.App.3d 57, 64 [superseded on other grounds as stated in Kohan v. Cohan (1991) 229 Cal.App.3d 967, 971].)

III. discussion

Shaginian requests the Court enforce the April 20, 2026 Court order, in which the Court ordered Volkswagen to provide further code-compliant responses and supplemental documents to Shaginian's Request for Production, Set One, within 30 days of the hearing on the motion. At the time of filing this motion, Shaginian had yet to receive any further responses.

Volkswagen served further code-compliant responses on May 26, 2026, as well as additional documents on May 29, 2026, pursuant to Shaginian's request. (Opp., Fletcher Decl. ¶¶ 4, 7, Ex. A.) Volkswagen's counsel attests the 6-day delay was due to mis-calendarizing the production deadline as May 26, 2026, instead of May 20, 2026. (Opp., Fletcher Decl. ¶ 3.)

Code-compliant further responses have been served prior to the hearing on this motion. Volkswagen has complied with the Court order. Therefore, the Court deems this motion MOOT.

The Court also will not impose terminating or monetary sanctions. Terminating sanctions are inappropriate as said sanctions should only be imposed when a violation is willful, preceded by a history of abuse, and the evidence shows less severe sanctions would not produce compliance with discovery rules. (Mileikowsky v.

Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) Volkswagen complied with the court order absent any sanctions, indicating terminating sanctions are inappropriate.

Shaginian also requests monetary sanctions for being required to bring the motion and as well as a prospective monetary sanction of \$500 for each day the Volkswagen fails to produce responses. As responses were produced on the same date as the motion was filed, there is no evidence that Volkswagen intentionally delayed its production, and Shaginian provides to evidence of its costs to bring the motion, the imposition of sanctions would be unjust.

To the extent that Volkswagen is late in complying with a court order in the future, the Court will reconsider whether this instance of delay is part of a history of abuse.

IV. CONCLUSION

Plaintiff Khachik Shaginian's Motion to Enforce Compliance with Court Order is MOOT.

Plaintiff Khachik Shaginian's request for monetary sanctions is DENIED.

Moving party is ordered to give notice.

DATED:

July 13, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if

they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.